

TOKEN SALE TERMS AND CONDITIONS

Please read this document carefully, as it is a binding legal agreement.

I understand that I will need to accept and agree to all the terms and conditions described in this document in order to purchase ERC20 RADIX TOKENS. By purchasing ERC20 RADIX TOKENS or clicking "Accept and Continue" or other similar words below:

- (a) I accept the terms and conditions set out in this document and any other applicable documents,
- (b) I confirm that I understand the ERC20 RADIX TOKEN will have no function other than to become exchangeable for a RADIX (XRD) TOKEN as and when the RADIX LEDGER is instantiated, and the E ERC20 RADIX TOKEN may have no value.
- (c) I confirm that I understand that my purchase of ERC20 RADIX TOKEN from RADIX TOKENS (JERSEY) LIMITED is not subject to capital market regulations and protections.
- (d) I confirm that I have read and accept the risks set out in the Information Memorandum, at <https://www.radixdlt.com/terms/eXRDmemo/>
- (e) I confirm that I have read and agree to the terms of the Privacy Notice at <https://radixdlt.com/privacy-notice/>.
- (f) I confirm that I wish to proceed to purchase ERC20 RADIX TOKEN on the basis of the terms and conditions set out in this document.

DISCLOSURE STATEMENT

RADIX TOKENS (JERSEY) LIMITED is a company incorporated in Jersey (registration number: 132555), whose registered office is at: First Floor La Chasse Chambers Ten La Chasse Jersey. RADIX TOKENS (JERSEY) LIMITED will sell **ERC20 RADIX TOKENS** and procure the delivery of these tokens to a wallet designated by you.

The RADIX LEDGER as hereinafter described has been developed by Radix DLT Limited. It is expected that the technology will be available for instantiation in Q2 of 2021. Radix Tokens (Jersey) Limited is not responsible for the creation or functioning or use of whatever RADIX LEDGER which may be instantiated or adopted.

The token that you will acquire is an ERC20 compliant token on the ETHEREUM BLOCKCHAIN, (**ERC20 RADIX TOKEN**). When the RADIX LEDGER is instantiated facilities will be provided to enable all of those who hold ERC20 RADIX TOKENS to exchange these for RADIX (XRD) TOKENS.

The **ERC20 RADIX TOKEN** will have no function other than it will become exchangeable for a **RADIX (XRD) TOKEN** as and when the RADIX LEDGER is instantiated.

When distributed the **RADIX (XRD) TOKEN** will be an unregulated cryptographic artefact which will enable the holder of the tokens to pay **RADIX TRANSACTION FEES** on the **RADIX LEDGER** and thereby execute **RADIX TRANSACTIONS**. Those who hold RADIX (XRD) TOKENS will be able to stake their tokens and participate as **NODE RUNNERS** (a **STAKING NODE**).

YOU WARRANT THAT YOU ARE NOT ACQUIRING ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS FOR THE PURPOSE OF SPECULATIVE INVESTMENT AND WILL NOT USE ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS TO FACILITATE ANY UNLAWFUL ACTIVITY

Neither the sale, purchase, use nor operation of the ERC20 RADIX TOKEN nor the RADIX TOKEN are regulated by any central bank or other regulatory authority in any jurisdiction or territory.

No warranty is given that any action has been or will be taken by RADIX TOKENS (JERSEY) LIMITED or its AFFILIATES to seek regulatory approval for the sale, use or transfer of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS under the laws, regulatory requirements, or rules of any jurisdiction.

You acknowledge, warrant and represent that you have undertaken all prudent inquiries, secured all appropriate advice, have sufficient knowledge and experience in financial matters and non-financial assets and a sufficient understanding of cryptographic tokens digital assets, distributed/digital ledger technology/software systems to be qualified to evaluate the risks and merits of the purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, including but not limited to the matters set forth in the RADIX TOKENS (JERSEY) LIMITED TERMS AND CONDITIONS OF PURCHASE.

You warrant that the assets you use to purchase or otherwise acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS do not constitute a significant percentage of your overall assets or income and that any loss of value of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS will not prejudice your welfare and you are able to bear any and all risks relating to the purchase, use and holding of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

You acknowledge that to the extent that there may be a market for the sale and purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, any price or value of such tokens may be volatile (whether in private sales or on EXCHANGES and other markets).

You acknowledge, understand and accept that there are significant risks associated with the acquisition, holding and use of cryptographic tokens which may include:

- (a) extreme fluctuations in price over short periods of time on a regular basis - a CONTRIBUTOR of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS should be prepared to expect fluctuations both down and up, in the price of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS denominated in Bitcoin ("BTC") or United States dollars ("USD") or other fiat money of other jurisdictions;
- (b) fluctuations due to market forces including, inter alia, the available supply and demand;
- (c) changes in legal or regulatory requirements and limitations on the rights of citizens of certain countries to open accounts at exchanges or to hold, exchange or use cryptographic tokens;
- (d) variation in the volume of market transaction (liquidity) of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS from time to time and from one jurisdiction to another;
- (e) action by regulatory bodies, governments, and law-enforcement agencies in diverse territories of the use, sale, and purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS (or other cryptographic tokens);
- (f) diverse events which might discourage, impede, or limit the use or exchange of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and/or the development of the RADIX LEDGER; and
- (g) the development of "forked" or alternative unofficial RADIX LEDGERS, which utilize the same base open-source code and open-source protocol underlying the RADIX LEDGER.

1. INDEMNITY

You hereby indemnify and hold safe (a) RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES, (b) BITFINEX TOKEN SALES INC. and its AFFILIATES, and its and their employees, officers, directors, contractors, consultants, shareholders, suppliers, vendors, service providers, parent companies, subsidiaries, agents, representatives, predecessors, successors and assignees (each person referenced in part (b) a **RELEASED PARTY** and collectively, the **RELEASED PARTIES**), against

and in respect of any damage, loss, loss of opportunity, loss of profit, anticipated savings or any special, incidental, or consequential damages arising from any use and misuse of the ERC20 RADIX TOKEN and/or the RADIX (XRD) TOKEN in any way connected to the possession, purchase, acquisition, loan, offer as security, staking, sale, use, exchange or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS by you or any successor in title and any third party to whom you transfer the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS (by sale disposition or transfer or otherwise). The RELEASED PARTIES are each an intended third-party beneficiary of this indemnity and shall be entitled to enforce this indemnity as if in direct privity under these Token Sale Terms and Conditions with you.

As a RADIX TOKEN HOLDER, you must take great care to write down, or otherwise securely store your PRIVATE KEY to ensure access to your wallet.

Loss of your PRIVATE KEY will CAUSE PERMANENT LOSS of access to your ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

TERMS AND CONDITIONS

FOR THE PURCHASE AND USE OF ERC20 RADIX TOKENS

These Terms and Conditions relate to the distribution by RADIX TOKENS (JERSEY) LIMITED and the acquisition by you of ERC20 RADIX TOKENS and/or any RADIX (XRD) TOKENS which may be received by you or your successors in title. BITFINEX TOKEN SALES INC. (BTS) and each of the other RELEASED PARTIES (defined below) is an intended third-party beneficiary of the disclaimers, representations, warranties, indemnities, and protections provided to RADIX TOKENS (JERSEY) LIMITED or specifically to the RELEASED PARTIES hereunder and shall be entitled to enforce such disclaimers, representations, warranties, indemnities and protections as if in direct privity under these Terms and Conditions with you. BTS shall be entitled to enforce such disclaimers, representations, warranties, indemnities and protections on behalf of itself and each RELEASED PARTY or the other RELEASED PARTIES shall be entitled to enforce such disclaimers, representations, warranties, indemnities and protections directly.

**PLEASE READ THESE TERMS CAREFULLY THROUGH TO THE END
IF YOU DO NOT AGREE TO THESE TERMS OF SALE,
DO NOT PARTICIPATE IN THE TOKEN SALE.**

These terms and conditions are issued by RADIX TOKENS (JERSEY) LIMITED, (a company incorporated in Jersey with registration number 132555).

You warrant you are acquiring the ERC20 RADIX TOKENS for the purpose of exchanging these for RADIX (XRD) TOKENS to **facilitate transactions on the RADIX LEDGER** and/or to obtain access to the functionality that will be provided by the **RADIX LEDGER** and/or to facilitate your participation on the RADIX LEDGER as a NODE RUNNER, (STAKING NODE).

ACTIVATION OF FUNCTIONALITY: the use of RADIX (XRD) TOKENS will facilitate the activation of certain functions within the RADIX LEDGER - one of which is to act as a value exchange mechanism and another for the payment of RADIX TRANSACTION FEES.

VALUE OF TOKENS: RADIX TOKENS (JERSEY) LIMITED makes no comment, representation or provides any assurance as to the value of any tokens which are acquired, used, or transmitted across the RADIX LEDGER by you or on your behalf or by any person who acquires possession of such tokens from you.

ECONOMIC VALUE OF TOKENS: RADIX TOKENS (JERSEY) LIMITED expresses no view, makes no representation and does not provide any assurance as to the present or future economic value of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS outside of the RADIX LEDGER. It is possible that such tokens will have no economic value at all.

NO SPECULATIVE INVESTMENT: you warrant that you are not acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS with a view to holding ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS as a speculative investment. You warrant that your motivation for acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and entering into this AGREEMENT is to facilitate the development of the RADIX LEDGER through participation in the consensus validation protocol and operations on the RADIX LEDGER.

PASSIVE PARTICIPATION: you acknowledge that if you neither use the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to perform a role as a NODE RUNNER (Staking Node) within the RADIX LEDGER, nor build on the RADIX LEDGER you may see your holdings of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS decline as a percentage of the entire population of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS over time as more ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS come into existence as a result of network emission, network subsidy payments, and future token sales. Over time, this may result in the substantial dilution of a passive participant's token holdings.

LOCKED TOKENS: where you are acquiring locked tokens, the unlocking of those tokens is linked to a price oracle for the tokens, it is possible that the market price of the tokens will not increase to a point which unlocks your tokens.

ACTIVE PARTICIPATION: involves a holder of tokens performing at least one of the following roles within the RADIX LEDGER: NODE RUNNERS (Staking Nodes) or engaging in operations on the RADIX LEDGER.

SECONDARY MARKET: the nature and extent of any secondary market for ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS cannot be predicted.

LIQUIDITY: you acknowledge that when acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, you have considered that lack of liquidity in markets for ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is a risk.

PERFORMANCE OF THE RADIX LEDGER: the decentralised nature of the operation of the RADIX LEDGER means that the greater the level of participation in the RADIX LEDGER by holders of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, the better the RADIX LEDGER will perform in terms of stability, security, and robustness of the RADIX PROTOCOL.

SALES PLATFORM: You and RADIX TOKENS (JERSEY) LIMITED wish to use the SALES PLATFORM (defined below) provided by BTS to effectuate the purchase of ERC20 RADIX TOKENS by you from RADIX TOKENS (JERSEY) LIMITED. Use of the SALES PLATFORM is subject to your agreement to the Token Sale Terms of Service with BTS, available at: <https://tokensales.bitfinex.com/legal/terms> (SALE PLATFORM TERMS OF SERVICE).

The SALE PLATFORM TERMS OF SERVICE are a separate agreement from these Terms and Conditions and are between you and BTS. These Terms and Conditions do not amend, edit or override the SALE PLATFORM TERMS OF SERVICE.

2. YOU WARRANT THAT:

You warrant that:

- 2.1 You have read you have understood and accepted the content of all up-to-date versions of:
 - (a) These Terms and Conditions;
 - (b) White Paper and the Legal Considerations, Risks and Disclaimer that can be found on the following link: https://www.radixdlt.com/#white_papers
 - (c) INFORMATION MEMORANDUM which is set out at the foot of these Term and Conditions including THE RISK WARNINGS set out therein; and
 - (d) RADIX PRIVACY POLICY attached hereto; and
- 2.2 You have undertaken all relevant due diligence, made such enquiries as to the use function, value, law and taxation of cryptographic tokens and taken independent legal advice before accepting these Terms and Conditions.

3. INTERPRETATION

A reference to a statute or statutory provision is a reference to it as amended, extended, or re-enacted from time to time.

A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

A reference to writing or written includes fax and email.

Any words following the terms: including for example, or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase, or term preceding those terms.

The following definitions and rules of interpretation shall apply to these Terms and Conditions and to the use holding and transmission of **ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS**.

The paragraph headings in these Terms and Conditions are for convenience only and shall not affect the interpretation of these Terms and Conditions.

AFFILIATES/AFFILIATED COMPANY	any person or business directly or indirectly in control of, or controlled by, or is under common control of any of the PARTIES or BTS or which can direct or cause the direction of the management and policies of a PARTY or BTS, whether by contract or otherwise.
AML	means anti-money laundering, including all laws applicable to the PARTIES or BTS prohibiting money laundering or any acts or attempted acts to conceal or disguise the identity or origin of; change the form of; or move, transfer, or transport, illicit proceeds, property, funds, fiat, or tokens, including, but not limited to, the promotion of any unlawful activity such as fraud, tax evasion, embezzlement, insider trading, financial crime, bribery, cyber theft or hack, narcotics trafficking, weapons proliferation, terrorism, or ECONOMIC SANCTIONS violations, which may also require internal controls to detect, prevent, report, and maintain records of suspected money laundering or terrorist financing.
AVAILABLE INFORMATION	the INFORMATION MEMORANDUM, THE DEFI WHITE PAPER, THE CONSENSUS WHITE PAPER, THE ECONOMICS WHITE PAPER, together with all information, technical specifications, economic projections, performance data published by RADIX TOKENS (JERSEY) LIMITED relating to any aspect of the possible value, use, function, or operation of the RADIX LEDGER, and/or the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
CONSIDERATION	tokens or other assets to be exchanged for ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
CONTRIBUTOR/YOU	a person who makes, acquires or contracts to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or where the context requires undertakes a RADIX TRANSACTION.
CONTRIBUTOR'S PURCHASE WALLET	CONTRIBUTOR'S Tokens Sales Wallet (as defined in the SALE PLATFORM TERMS OF SERVICE) into which you must deposit the Consideration for the ERC20 RADIX TOKEN you wish to purchase in accordance with the SALE PLATFORM TERMS OF SERVICE .
DIGITAL TOKENS ADDRESS	means an alphanumeric identifier that represents a potential destination for a tokens transfer, which typically is associated with a PERSON's wallet.
ECONOMIC SANCTIONS	means financial sanctions, trade embargoes, export or import controls, anti-boycott, and restrictive trade measures enacted, administered, enforced, or penalized by any laws applicable to the PARTIES or BTS or applicable to the SALES PLATFORM.

ERC20 RADIX TOKEN

a digital artefact generated using the ETHEREUM BLOCKCHAIN in ERC20 format (ERC20 RADIX TOKEN) on the ETHEREUM BLOCKCHAIN ahead of the launch of the RADIX LEDGER with the purpose of ensuring broad adoption and distribution of tokens which are exchangeable for a RADIX (XRD) TOKEN generated on instantiation of the RADIX LEDGER (which will use a proof of stake validation mechanism).

EXCHANGE

a third-party undertaking, whether centralised or decentralised, regulated or unregulated, that facilitates the trading/exchange of cryptocurrencies or digital assets for other assets, such as conventional fiat money or other digital currencies.

EXCHANGE TOKEN

cryptographic token which may be used on a distributed ledger as a medium of exchange.

GOVERNMENT

means any national, federal, state, municipal, local, or foreign branch of government, including, but not limited to, any department, agency, subdivision, bureau, commission, court, tribunal, arbitral body, or other governmental, government appointed, or quasi-governmental authority or component exercising executive, legislative, juridical, regulatory, or administrative powers, authority, or functions of or pertaining to a government instrumentality, including, but not limited to, any parastatal company, or state-owned (majority or greater) or controlled business enterprise.

GOVERNMENT APPROVAL

means any authorization, license, permit, consent, approval, franchise, concession, lease, ruling, certification, exemption, exception, or waiver by or with any GOVERNMENT necessary to conduct the business of either Party or BTS or the use of the SALES PLATFORM as contemplated by this AGREEMENT or any transaction entered into under this AGREEMENT.

GOVERNMENT OFFICIAL

means an officer or employee of any Government, a director, officer, or employee of any instrumentality of any Government, a candidate for public office, a political party or political party official, an officer or employee of a public international organization, and any PERSON who is acting in an official capacity for any of the foregoing, even if such PERSON is acting in that capacity temporarily and without compensation.

INTELLECTUAL PROPERTY

patents, utility models, rights to inventions, supplementary protection certificates, copyright and neighbouring and related rights, moral rights, trademarks and service marks, business names and domain names, rights in get-up, goodwill and the right to sue for passing off or unfair competition, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how and trade secrets), semiconductor topography rights, and all other

	intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.
INFORMATION MEMORANDUM	the memorandum issued by RADIX TOKENS (JERSEY) LIMITED dated 22 nd October 2020.
NODE RUNNER/STAKING NODE	a person who stakes all or part of their holding of RADIX TOKENS for the time being to participate in the proof of stake consensus validation process and in relation to which fees may be received in RADIX TOKENS.
NOTICE	(where the context requires), a notification given to the other PARTY in accordance with of these Terms and Conditions (Clause 16).
PARTIES	RADIX TOKENS (JERSEY) LIMITED and you/the CONTRIBUTOR individually or collectively as the context requires. For greater certainty, BTS is not a party to this AGREEMENT, but is an intended third-party beneficiary as described above.
PERSON	a natural person, corporate or unincorporated body (whether having separate legal personality).
PLEDGE	the decision by CONTRIBUTOR to “lock” for the duration of the sale, by following the process specified by the SALES PLATFORM, a number of specified tokens in the CONTRIBUTOR’S PURCHASE WALLET to act as CONSIDERATION for a potential purchase of ERC20 RADIX TOKENS from RADIX TOKENS (JERSEY) LIMITED .
RADIX ETHEREUM BLOCK CHAIN	the distributed ledger and smart contract upon which the ERC20 RADIX TOKENS reside/operate.
RADIX TRADE MARKS	all registered and unregistered marks and devices which are owned by or licensed to RADIX TOKENS (JERSEY) LIMITED including the word RADIX in all jurisdictions and for all uses and variations, including the use in relation to the RADIX LEDGER, the ERC20 RADIX TOKEN, RADIX XRD TOKEN, RADIX TOKEN and in relation to cryptographic tokens, decentralised finance and all services and product relating thereto.
RADIX TOKEN	RADIX (XRD) TOKEN and/or the ERC20 RADIX TOKEN collectively or individually as the context requires as generated by RADIX TOKENS (JERSEY) LIMITED for use in relation the RADIX LEDGER.
RADIX TOKENS (JERSEY) LIMITED	a limited liability company incorporated in Jersey with registration number 132555 and whose registered office is at: First Floor La Chasse Chambers Ten La Chasse Jersey JE2 4UE.
RADIX LEDGER	a trust-less peer-to-peer network capable of determining the order of events within a distributed system, agnostic to its operating environment based on a structured,

	shardable architecture which is instantiated by RADIX TOKENS (JERSEY) LIMITED consistent with standards established or approved by RADIX TOKENS (JERSEY) LIMITED.
RADIX PROTOCOL	the core code that forms the underlying layer of software used by the RADIX LEDGER establishing the rules that allow entities to communicate, transmit and record information and data across the RADIX LEDGER and perform transactions.
RADIX TOKEN HOLDER/USER	a PERSON having de-facto control of a RADIX WALLET also referred to as a USER.
RADIX TRANSACTION FEES	the fees in RADIX (XRD) TOKENS payable by USERS which will be required by the RADIX PROTOCOL to perform transactions on the RADIX LEDGER.
RADIX TRANSACTION	the transmission by a RADIX TOKEN HOLDER using the RADIX LEDGER, including the transmission or receipt by you of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to any RADIX WALLET and including future trading of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any exchange or market (regulated, unregulated, primary, or secondary).
RADIX WALLET	any software or code which is configured to hold, receive, or transmit ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
RADIX WALLET ADDRESS	a publicly available on-ledger unique alphanumeric string that identifies the control, location, and amount of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on a public RADIX LEDGER.
RADIX (XRD) TOKEN	a unique digital artefact generated by publication dispersal and adoption of the software which will implement the RADIX LEDGER, and which may be used as notional payment of RADIX TRANSACTION FEES and NODE STAKING and/or as an EXCHANGE TOKEN.
RELEASED PARTIES	BTS. and its AFFILIATES, and its and their employees, officers, directors, contractors, consultants, shareholders, suppliers, vendors, service providers, parent companies, subsidiaries, agents, representatives, predecessors, successors and assignees.
RESTRICTED PERSON	any Person, firm, company, partnership, trust, corporation, entity, Government, Government Official, or any other incorporated or unincorporated body or association, association or partnership (whether or not having separate legal personality): (a) established domiciled, a citizen or resident in a RESTRICTED TERRITORY; (b) identified in Appendix 1 as a RESTRICTED PERSON; (c) in or subject to the jurisdiction of a RESTRICTED TERRITORY, or (d) who is restricted by law or regulation from receiving the AVAILABLE INFORMATION; or acquiring holding buying or selling the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

RESTRICTED TERRITORY

those territories set out at Appendix 1 together with any further territories which may be designated as subject to sanctions or other restrictions which prevent its nationals' citizens or residents from participating in the sale/purchase holding use or transmission of cryptographic tokens and/or which may be designated by RADIX TOKENS (JERSEY) LIMITED from time to time.

RISK WARNINGS

all notices information and material provided by RADIX TOKENS (JERSEY) LIMITED as part of this AGREEMENT or the AVAILABLE INFORMATION upon which an informed purchase may reasonably be informed about the risks, limitations and uncertainty surrounding the purchase, holding, use and/or transmission of cryptographic tokens generally and the ERC20 RADIX TOKEN specifically.

RULES OF SALE

the method and processes of depositing and distributing tokens, communicating prices, accepting a PLEDGE, allocating and delivering CONSIDERATION to RADIX TOKENS (JERSEY) LIMITED and related purchased ERC20 RADIX TOKEN tokens to CONTRIBUTOR, return of access to PLEDGED tokens which are not used to purchase ERC20 RADIX TOKEN and such other methods and processes which are used to administer the sale of ERC20 RADIX TOKEN tokens to CONTRIBUTOR by RADIX TOKENS (JERSEY) LIMITED, such methods and processes are implemented by the SALES PLATFORM.

SALES PLATFORM

the token sale technology and platform provided by BTS to effectuate the purchase of ERC20 RADIX TOKEN by CONTRIBUTOR from RADIX TOKENS (JERSEY) LIMITED.

SANCTIONS LIST

means the "Specially Designated Nationals and Blocked Persons" (**SDN**) List and the Non-SDN List, including the "Sectoral Sanctions Identifications List", published by the Office of Foreign Assets Control of the U.S. Department of the Treasury (**OFAC**); the Section 311 Special Measures for Jurisdictions, Financial Institutions, or International Transactions of Primary Money Laundering Concern published by the Financial Crimes Enforcement Network of the U.S. Department of the Treasury (**FinCEN**); and, any other foreign terrorist organization or other sanctioned, restricted, or debarred party list published by the the Financial Investigation Authority of the British Virgin Islands (**FIA**), or under ECONOMIC SANCTIONS, AML, or counter-terrorist financing (**CTF**) laws of or by GOVERNMENTS of the United States, the British Virgin Islands (including any sanctioned, restricted, or debarred party list under the Laws of the United Kingdom and applicable in the British Virgin Islands), or the United Nations

SANCTIONED PERSON

refers to any PERSON or DIGITAL TOKENS ADDRESS that is: (i) specifically listed in any SANCTIONS LIST; (ii) directly or indirectly owned 50 percent or more by any PERSON or group of PERSON in the aggregate, or a wallet

associated with such PERSON or PERSONS, referred to in any SANCTIONS LIST, or GOVERNMENT or GOVERNMENT OFFICIAL of any RESTRICTED JURISDICTION; or (iii) that is subject to any GOVERNMENT APPROVAL or otherwise sanctioned, restricted, or penalized under applicable laws

TERRITORY OR INSULAR POSSESSION OF THE UNITED STATES

means the Commonwealth of Puerto Rico; the U.S. Virgin Islands; Guam; the Commonwealth of the Northern Mariana Islands; and all other territories and possessions of the United States, other than the Indian lands (as that term is defined in the Indian Gaming Regulatory Act);

UNITED STATES or U.S.

the several states of the United States and the District of Columbia

U.S. CITIZEN OR U.S. RESIDENT

includes any U.S. citizen, U.S. lawful permanent resident, individual who meets the “substantial presence” test described in section 7701(b)(3) of the U.S. Internal Revenue Code of 1986 (as amended), protected individual under section 1324b(a)(3) of the U.S. Immigration and Nationality Act, or individual who holds a passport issued by the United States Government;

US PERSON(S)

means (a) a U.S. CITIZEN OR U.S. RESIDENT; (b) a corporation, partnership, or other entity established or organized in or under the laws of the United States; (c) any estate of a decedent who was a U.S. CITIZEN OR U.S. RESIDENT; (d) any trust if (i) a court within the United States is able to exercise primary supervision over the administration of the trust, and (ii) one or more US PERSONS have the authority to control all substantial decisions of the trust; (e) any Person organized or incorporated outside the United States and the Territory or Insular Possession of the United States in which any of the foregoing, whether singularly or in the aggregate, directly or indirectly (i) holds a 50 percent or greater equity interest by votes or value, (ii) holds a majority of seats or memberships on the board of directors of the entity, or (iii) authorizes, establishes, directs, or otherwise controls the actions, policies, personnel decisions, or day-to-day operations of the Person; or (f) any pension plan for the employees, officers or principals of a legal entity described in paragraph (b) of this definition unless the pension plan is primarily for foreign employees of such entity.

USER

any person lawfully in possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS as the context requires.

WHITE PAPERS

the DeFi White Paper, the Technical White Paper and the Economics White paper published at https://www.radixdlt.com/#white_papers

4. BACKGROUND

- 4.1 The RADIX LEDGER will be activated when the relevant software is adopted by USERS who hold RADIX TOKENS and NODE RUNNERS (STAKING NODES) implement and activate the RADIX LEDGER.
- 4.2 RADIX TOKENS (JERSEY) LIMITED is not the author of the software underpinning the RADIX LEDGER or the RADIX PROTOCOL and is not responsible for the performance functioning use or reliability of that software.
- 4.3 RADIX TOKENS (JERSEY) LIMITED is authorised to initiate the RADIX ETHEREUM BLOCKCHAIN and the RADIX LEDGER and initiate the transfer of the ERC20 RADIX TOKENS.
- 4.4 RADIX TOKENS (JERSEY) LIMITED does not have any right, power or control over the publication, use, adoption, or operation of the software that underpins the RADIX LEDGER, RADIX PROTOCOL or the NODE RUNNER client software.
- 4.5 The initial state of the RADIX LEDGER will be created when a protocol which is compliant with the RADIX LEDGER is adopted by those who choose to perform the function of a NODE RUNNER (Staking Nodes). The state of the RADIX LEDGER when distributed will recognise and activate the RADIX (XRD) TOKENS.
- 4.6 RADIX TOKENS (JERSEY) LIMITED gives NO warranty as to the use, value, function, or legal nature of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 4.7 By downloading a RADIX WALLET, acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, entering or instigating a RADIX TRANSACTION you accept and agree to be bound by these Terms and Conditions.
- 4.8 RADIX TOKENS (JERSEY) LIMITED may offer the ERC20 RADIX TOKENS for sale via third-party platforms, exchanges or intermediaries.
- 4.9 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are not redeemable.

5. CREATION OF A BINDING PURCHASE AND SALE AGREEMENT

- 5.1 **By clicking on “Accept and Continue” below, or other similar words you;**
 - (a) **AGREE TO ENTER INTO AN IRREVOCABLE PURCHASE AGREEMENT**, which is legally binding on YOU (and your successors in title) with RADIX TOKENS (JERSEY) LIMITED for the purchase of ERC20 RADIX TOKENS on these TERMS AND CONDITIONS incorporating these Terms and Conditions which incorporate the AVAILABLE INFORMATION, the INFORMATION MEMORANDUM and the PRIVACY/DATA PROTECTION POLICY, and any reference herein to this Agreement or Agreement shall mean an agreement formed in accordance with this clause.
 - (b) acknowledge that you have read, understood, and agreed with all AVAILABLE INFORMATION and agree to acquire ERC20 RADIX TOKENS;
 - (c) agree to comply with the SALE PLATFORM TERMS OF SERVICE for the use of the SALES PLATFORM and the RULES OF SALE;
 - (d) confirm that you have fully and honestly complied with all requests for information and disclosure including source of funds/wealth; and
 - (e) confirm that you have deposited sufficient tokens in the CONTRIBUTOR’S PURCHASE WALLET to satisfy the purchase CONSIDERATION.
- 5.2 It is a condition precedent to this AGREEMENT coming into effect that you have:

- (a) satisfactorily complied with all due diligence requirements, including provision of evidence of your identity and source of funds which is acceptable to RADIX TOKENS (JERSEY) LIMITED. This may include on chain analysis of any tokens which you use or PLEDGE to acquire the ERC20 RADIX TOKENS; and
- (b) that you have agreed to be bound by these TERMS AND CONDITIONS.

6. PURCHASE PROCESS AND ALLOCATION OF TOKENS

- 6.1 Entering into this AGREEMENT and subscribing for and agreeing to purchase ERC20 RADIX TOKENS does not guarantee that you will receive as many tokens as you have requested/subscribed for or which relate to any PLEDGE you make or have made.
- 6.2 Prior to entering into this AGREEMENT, you must deposit the PLEDGE into the CONTRIBUTOR'S PURCHASE WALLET.
- 6.3 Upon confirmation that you have agreed to the terms hereof and complied with all conditions precedent at Clause 5.2 above, you shall be entitled to make and deposit a PLEDGE in accordance with the RULES OF SALE.
- 6.4 By entering into this AGREEMENT, you agree to subscribe for and purchase the number of ERC20 RADIX TOKENS indicated by you on the SALES PLATFORM supported by your PLEDGE in accordance with the RULES OF SALE on these TERMS AND CONDITIONS.
- 6.5 The price of each ERC20 RADIX TOKEN and the CONSIDERATION for your purchase will be communicated to you on the SALES PLATFORM immediately before the start of the sale of ERC20 RADIX TOKEN on the SALES PLATFORM (the STRIKE PRICE).
- 6.6 Upon deposit of your PLEDGE, you acknowledge and agree that your PLEDGE will be locked in the CONTRIBUTOR'S PURCHASE WALLET throughout the full duration of the sale. You may PLEDGE as many times as you like during the duration of the token sale so long as the total number ERC20 RADIX TOKENS you PLEDGE to receive is at all times greater than the minimum pledge and does not exceed the maximum pledge, each as communicated on the SALES PLATFORM.
- 6.7 When the sale is complete, based on the duration of the token sale communicated on the SALES PLATFORM unless a different duration is communicated on the SALES PLATFORM, your PLEDGE will, subject to Section 6.8, be converted to CONSIDERATION and become the property of RADIX TOKENS (JERSEY) LIMITED and the corresponding ERC20 RADIX TOKENS will be transferred to CONTRIBUTOR'S PURCHASE WALLET.
- 6.8 **If the sale is oversubscribed:** if more pledges are received than the total number of ERC20 RADIX TOKENS available (such number of ERC20 RADIX TOKENS to be communicated on the SALES PLATFORM), ERC20 RADIX TOKENS will be allocated amongst contributors who made pledges on a pro-rata basis based on the total the number of pledges received for ERC20 RADIX TOKENS weighted by the number of ERC20 RADIX TOKENS such contributor pledged to receive such that each contributor receives a proportion of the total number of available ERC20 RADIX TOKENS (at the STRIKE PRICE) in relation to the number such contributor pledged to receive.
- 6.9 You hereby authorise and irrevocably agree to RADIX TOKENS (JERSEY) LIMITED conducting the sale process in accordance with the terms of this AGREEMENT and the RULES OF SALE and engaging BTS to so administer such sale.
- 6.10 You will be deemed to have paid for the ERC20 RADIX TOKENS allocated to you when the appropriate CONSIDERATION is received by RADIX TOKENS (JERSEY) LIMITED. Only upon receipt of the CONSIDERATION will you be entitled to receive the corresponding number of ERC20 RADIX TOKENS (such number determined based on the STRIKE PRICE)

7. ACQUISITION OF ERC20 RADIX TOKENS AND RADIX (XRD) TOKENS

- 7.1 RADIX TOKENS (JERSEY) LIMITED is not liable for the deeds or misconduct of any third-party platform, exchange, broker or intermediary.
- 7.2 Nothing in this AGREEMENT renders RADIX TOKENS (JERSEY) LIMITED the agent or partner or otherwise liable (whether jointly or severally) for the actions of such third parties or intermediaries and vice versa, neither shall such third-party including without limitation exchanges, brokers or intermediaries have any authority to bind RADIX TOKENS (JERSEY) LIMITED or to vary this AGREEMENT or make any representation or give any warranties on behalf of RADIX TOKENS (JERSEY) LIMITED.

8. RISK; RELEASE

- 8.1 None of RADIX TOKENS (JERSEY) LIMITED or any of the RELEASED PARTIES shall be liable for any loss suffered by you, or anyone claiming through you including loss of savings or additional costs, loss of opportunity including loss of anticipated profit, direct or indirect loss of tokens, caused by or related to:
- (a) the operation of the SALES PLATFORM or any failure in the security, operation, allocation, custody, return and or transfer of PLEDGES or tokens, by or to any wallet;
 - (b) errors or omissions, timing differences, failures in systems or processes operated by or contracted to provide services for the SALES PLATFORM including misstatement or error in the statement or publication of the price;
 - (c) Failure, delay or error in any telecommunications network or computer system including any algorithm, logic or code errors, whether human or otherwise;
 - (d) hacking, destruction or unlawful interference with any computer system, network,(or part thereof) or failure of any security protocol, including the unlawful introduction of malware, ransomware, malicious code of any kind into any system or process operated by or on behalf of the SALES PLATFORM, RADIX TOKENS (JERSEY) LIMITED or a third party providing services to either or both entities, including without limit the theft destruction or interference with and hardware, physical security devices, codes, or passwords;
 - (e) misconduct, error, omission, system failure, failure or neglect including any failure in transmission, misappropriation of tokens, hacking; or
 - (f) any loss of ownership or control of tokens, systems, wallets, or business processes attributable to adverse action by a regulatory authority or enforcement agencies including but not limited to changes in regulation, court or regulatory orders, decision or directives, the seizure of tokens, wallets, or freezing of accounts or other restrictions injunctions or legal action.
- 8.2 CONTRIBUTOR, on behalf of itself, and its successors, heirs, assigns and anyone else who may make any claim for or on CONTRIBUTOR'S behalf, hereby irrevocably and unconditionally: (a) fully and forever release, discharge and indemnify the RELEASED PARTIES from any and all liability for any loss, harm, damages, cost or expense arising out of or in connection with this AGREEMENT; (b) agree not to initiate any lawsuit, court action or other legal proceeding against any of the RELEASED PARTIES, nor join or assist in the prosecution of any claim for money damages, which anyone may have, on account of loss, damage or injury sustained by CONTRIBUTOR or others arising out of or in connection with this AGREEMENT.
- 8.3 To the extent the foregoing is not effective, and CONTRIBUTOR is able to bring any lawsuit, court action or other legal proceeding against one or more of the RELEASED PARTIES arising out of or in connection with this AGREEMENT, the RELEASED PARTIES' aggregate liability to the CONTRIBUTOR arising out of or in connection with this AGREEMENT shall not exceed the value of the CONSIDERATION.

9. TOKEN BONUS

RADIX TOKENS (JERSEY) LIMITED will provide bonus tokens to you which will equate to 40% of the number of ERC20 RADIX TOKENS you purchase (**BONUS TOKENS**). Such bonus tokens will be transferred to the CONTRIBUTOR'S PURCHASE WALLET at a rate of 2.5% of the BONUS TOKENS per day for 40 days. The first distribution of 2.5% of the BONUS TOKENS will be distributed the day after completion of the token sale and will continue each day for 40 days.

10. NO SALES TO US PERSONS

- 10.1 Neither the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are offered, sold distributed or re-sold to any US PERSONS. RADIX TOKENS (JERSEY) LIMITED does not solicit US PERSONS to acquire the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 10.2 US PERSONS shall not directly or indirectly subscribe for, purchase, or attempt to purchase or acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS directly or indirectly.
- 10.3 It is a breach of this AGREEMENT to enter into this AGREEMENT as agent for a US PERSON or with the intent of re-supplying a US PERSON.
- 10.4 RADIX TOKENS (JERSEY) LIMITED may take all necessary and appropriate actions, in its sole discretion, to invalidate any such agreement, including referral of information to the appropriate authorities.
- 10.5 Any US PERSON who acquires ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or enters this AGREEMENT on an unlawful, unauthorised or fraudulent basis shall be solely liable for, and shall indemnify, defend and hold harmless RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES and their respective past, present and future employees, officers, directors, contractors, consultants, equity holders, suppliers, vendors, service providers, parent companies, subsidiaries, affiliates, agents, representatives, predecessors, successors and assigns against and from any damages, losses, liabilities, costs or expenses of any kind, whether direct or indirect, consequential, compensatory, incidental, actual, exemplary, punitive or special and including, without limitation, any loss of business, revenues or profits.

11. USE OF RADIX TOKEN

- 11.1 RADIX TOKENS (JERSEY) LIMITED grants to USERS a limited revocable license to use the RADIX TRADE MARKS in connection with the lawful use, of the ERC20 RADIX TOKENS and the RADIX (XRD) TOKENS and the creation use and sale of software applications in relation to the RADIX LEDGER.
- 11.2 The sole function of the RADIX (XRD) TOKEN will be as a mechanism for the RADIX TOKEN HOLDER to exchange and pay and discharge the RADIX TRANSACTION FEES on the RADIX LEDGER and to enable NODE RUNNERS to provide staking services to the RADIX LEDGER.
- 11.3 You warrant that:
 - (a) you are not acquiring any of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS with a view to holding these as a speculative investment or with any expectation or profit, dividend, capital gain, financial yield or any other return, payment or income of any kind; and
 - (b) you are acquiring the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and entering into this AGREEMENT to facilitate the development of the RADIX LEDGER through participation in consensus, validation, and operations on the RADIX LEDGER.
- 11.4 Possession of a RADIX WALLET or an ERC20 RADIX TOKEN or a RADIX (XRD) TOKEN does not entitle you or any successor in title, transferee, or person in possession to:
 - (a) any right, title or interest, dividend, distribution, benefit, or control of RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED

- or any aspect of the RADIX LEDGER, or the protocol, technology or intellectual property underlying the ERC20 RADIX TOKENS or RADIX (XRD) TOKENS;
- (b) receive any profits, bonuses, additional tokens (of any kind) or further allocation of tokens;
 - (c) participate in the management, control or direction of any enterprise including without limitation: RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED;
 - (d) any legal or beneficial claim, right, title, or interest in RADIX TOKENS (JERSEY) LIMITED or claim upon the assets of either of RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED;
 - (e) be paid or remunerated or compensated in any way in money or money's worth in respect of any participation in or contribution made to RADIX TOKENS (JERSEY) LIMITED, their AFFILIATES or the RADIX LEDGER; and/or
 - (f) receive any distribution, interest, right or benefit from the winding up, insolvency, reconstruction, or cessation of business by RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED.
- 11.5 The distribution sale, allocation, or possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall not be construed, interpreted, classified, or treated as conferring on the RADIX TOKEN HOLDER any rights or benefits compatible with any form of:
- (a) legal or beneficial right, title, interest, or ownership in or to the underlying code, software or intellectual property, intangible property or know how comprising the RADIX LEDGER, the RADIX (XRD) TOKEN (as represented by the RADIX LEDGER) or the ERC20 RADIX TOKEN as represented on the ETHEREUM BLOCKCHAIN;
 - (b) the sale of the ERC20 RADIX TOKEN and/or the RADIX (XRD) TOKEN;
 - (c) currency or commodity;
 - (d) debentures, stocks, or shares issued by any person or entity whether RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED or otherwise;
 - (e) rights, options, or derivatives in respect of such debentures, stocks, or shares;
 - (f) rights under a contract for differences or under any other contract, the purpose or pretended purpose of which is to secure a profit or avoid a loss;
 - (g) units in a collective investment scheme;
 - (h) units in a business trust;
 - (i) derivatives of units in a business trust; or
 - (j) any other security or class of securities.
- 11.6 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are non-refundable and cannot be cancelled or redeemed.
- 11.7 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS have no intrinsic value and may have no market value.
- 11.8 You agree not sell exchange, deliver, assign, or transfer any right, title, interest, or possession in or to ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to any RESTRICTED PERSON nor will you sell, promote or offer for sale nor procure others to sell, offer for sale, deal in or promote the sale transfer, pass possession, purchase or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in any RESTRICTED TERRITORIES.

12. PERSONAL DATA

- 12.1 You/the CONTRIBUTOR agree to the processing of your personal data received by RADIX TOKENS (JERSEY) LIMITED in accordance with the PRIVACY AND DATA PROCESSING POLICY set out at Appendix 2.
- 12.2 You/the Contributor acknowledge that you are purchasing ERC20 RADIX TOKENS in accordance with Clause 5 and that you consent to the personal data provided to RADIX TOKENS (JERSEY) LIMITED being shared with the operators of the SALE PLATFORM on the condition that RADIX TOKENS (JERSEY) LIMITED complies with Paragraph 6.2 of APPENDIX 2.

13. WARRANTIES BY YOU

- 13.1 You/the CONTRIBUTOR WARRANT THAT You are:
- (i) a natural person and that you are over 18 (eighteen) years of age; **and**
 - (ii) you are not a RESTRICTED PERSON.
- 13.2 You warrant that you have obtained independent legal advice in relation to:
- (a) your entitlement to lawfully acquire the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
 - (b) this AGREEMENT;
 - (c) the laws of any territory of which you are a national or resident or where you located prior to or at the time of offering to purchase, acquiring, or receiving the AVAILABLE INFORMATION, and/or any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
 - (d) conducting any RADIX TRANSACTION; and
 - (e) you do not know of any lawful reason why you should not enter into any agreement with RADIX TOKENS (JERSEY) LIMITED for the purchase, use, transfer, or possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 13.3 You warrant that:
- (a) you have the necessary authority and capacity to enter into this AGREEMENT and to give all of the undertakings and warranties in this AGREEMENT and the acceptance of the AGREEMENT and the entry into a binding agreement with RADIX TOKENS (JERSEY) LIMITED shall not result in any breach of, be in conflict with, or constitute a material default under (i) any provision of any judgment, decree or order imposed on you by any court or governmental or regulatory authority; or (ii) any material agreement, obligation, duty or commitment to which you are a party or by which you are bound;
 - (b) you will comply with all laws, regulatory requirements, and rules as are applicable to the acquisition, exchange, ownership, possession, use, sale, purchase, or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
 - (c) the AVAILABLE INFORMATION, and/or completion of the purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, or trading of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any EXCHANGE or market (regulated, unregulated, primary, secondary, or otherwise), shall not be construed, interpreted or deemed by you as an indication of the merits, values or qualities of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, or the AVAILABLE INFORMATION;
 - (d) you are not acting in any representative capacity as nominee agent or otherwise on behalf of a RESTRICTED PERSON (for tax purposes or otherwise) or other PERSON in connection with your interactions and agreement with RADIX TOKENS (JERSEY) LIMITED or your offer, ownership, possession, exchange, use, sale or transfer of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;

- (e) you are in receipt of the AVAILABLE INFORMATION and acknowledge that the acquisition, possession or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS may be prohibited or restricted by applicable laws, regulations, or rules in your local jurisdiction;
- (f) to the extent legally possible, you are subject to any restrictions which apply to the purchase, receipt, possession, exchange transmission, or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in any jurisdiction, you will observe and comply, and continue to observe and comply, with all such laws, regulations and restrictions at your own expense and fully and effectively indemnify and hold safe RADIX TOKENS (JERSEY) LIMITED and each AFFILIATE of RADIX TOKENS (JERSEY) LIMITED as well as each of the RELEASED PARTIES in relation to any losses demands or claim resulting from your failure to do so;
- (g) no tokens, consideration or value whatsoever provided by you for the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is derived from or related to any unlawful activities or constitute the proceeds of crime (in any territory) including but not limited to any use which is or has facilitated money laundering or terrorist financing;
- (h) all tokens, consideration or value whatsoever provided by you for the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are owned by you and you have good and sufficient title to such tokens, consideration or value to transfer them to safe RADIX TOKENS (JERSEY) LIMITED pursuant to this AGREEMENT;
- (i) you will not use, promote, procure, or encourage the use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to finance, engage in, or otherwise support unlawful activities in any territory, and all payments or transfer of tokens will be made by you only, in your name, lawfully authorised by you, from a digital wallet or bank account in compliance with all applicable local laws, regulations, rules and restrictions as may apply to such payments transfers or exchanges from time to time;
- (j) you are not nor have you ever been, subject to any investigation nor have you received a request for information from any governmental body relating to money laundering corruption or bribery, under any law or statute, nor have you been charged or convicted of being involved in any activity associated with money laundering, terrorist financing, or any other similar anti-corruption or anti bribery statute;
- (k) you have sufficient understanding of the functionality, usage, storage, transmission mechanisms and intricacies associated with digital tokens (like Bitcoin and ETH), token storage facilities (including digital token wallets), block-chain technology and block-chain-based software systems.
- (l) the CONTRIBUTOR'S PURCHASE WALLET, if registered with BTS is registered in your name and you have all necessary power, rights and authority to transfer the CONSIDERATION to RADIX TOKENS (JERSEY) LIMITED from the CONTRIBUTOR'S PURCHASE WALLET;
- (m) all information, documents or other materials you submit to RADIX TOKENS (JERSEY) LIMITED in connection with this AGREEMENT shall not, as of the respective dates provided until the completion of the acquisition of ERC20 RADIX TOKENS contemplated by this AGREEMENT contain any untrue, uncorrected statement of a fact or omit to state a fact necessary in order to make the information provided, in light of the circumstances under which they are made, not misleading; and
- (n) you shall promptly and in good faith collaborate with all requests made by RADIX TOKENS (JERSEY) LIMITED, BTS and all regulatory authorities in connection with, "know your client" (KYC) and anti-money laundering (AML) policies/ anti-corruption /compliance procedures and make available all information and documents on demand reasonably required by RADIX TOKENS (JERSEY) LIMITED or BTS.

- 13.4 You hereby authorise RADIX TOKENS (JERSEY) LIMITED and BTS to conduct any enquiries, including with third party providers, in relation to the source of funds or representation of monies used to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and/or any suspected unlawful use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and you waive any privacy or other similar right which would prevent RADIX TOKENS (JERSEY) LIMITED or BTS from undertaking such enquiries.
- 13.5 You acknowledge and agree that any breach of the warranties or suspected breach of the warranties given by you pursuant to this Clause 13 entitles RADIX TOKENS (JERSEY) LIMITED to refuse to process any purchase and/or terminate any agreement with immediate effect to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 13.6 The right of termination pursuant to this Clause 13 shall be in addition to any other remedy RADIX TOKENS (JERSEY) LIMITED may have including where appropriate restricting access by law or physically to or use of the RADIX LEDGER or denying a USER the right to or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS which may include a right to demand the return and/or (where applicable) the destruction of any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in your possession custody or control.
- 13.7 In the event of any question arising as regards the source, provenance or legal status of any tokens or monies or representations of money received by or on behalf RADIX TOKENS (JERSEY) LIMITED, RADIX TOKENS (JERSEY) LIMITED may withhold restitution of any tokens or payment (in whatever form) deposited or paid to RADIX TOKENS (JERSEY) LIMITED, and RADIX TOKENS (JERSEY) LIMITED shall be entitled to withhold the same without liability until the provenance, legal status or ownership of the same has been established to the satisfaction of RADIX TOKENS (JERSEY) LIMITED, which may include final determination by a court and/or a judgment or arbitration award recognised by the courts of Jersey.
- 13.8 You hereby agree to indemnify and hold harmless RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES and each of the RELEASED PARTIES against all losses, claims, costs, demands and awards by you and/or any third-party in relation to and including the costs of bringing or defending any proceedings arising out of or relating to the provenance, ownership, legal status, source of wealth money, tokens or representations of money received or receivable by RADIX TOKENS (JERSEY) LIMITED.

14. LIMITATION OF LIABILITY RADIX TOKENS (JERSEY) LIMITED AND THE RELEASED PARTIES

- 14.1 RADIX TOKENS (JERSEY) LIMITED and the RELEASED PARTIES do not make or purport to make any warranty or give any assurance that the ERC20 RADIX TOKEN and/or the RADIX (XRD) TOKEN will function as intended or anticipated or for any particular purpose required by you. You acknowledge that the RADIX LEDGER is an experimental technology.
- 14.2 RADIX TOKENS (JERSEY) LIMITED and each of the RELEASED PARTIES hereby exclude liability for all and any representation, misrepresentation, warranty or undertaking in any form whatsoever, whether express or implied, including any representation, warranty or undertaking in relation to the use, value or other characteristics of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, and/or the RADIX LEDGER made to any entity or person, (including without limitation any actual or prospective RADIX TOKEN HOLDER).
- 14.3 None of RADIX TOKENS (JERSEY) LIMITED or its AFFILIATES, or any current or former employees, officers, directors, partners, trustees, representatives, agents, advisors, contractors or volunteers of RADIX TOKENS (JERSEY) LIMITED or its AFFILIATES, or any of the RELEASED PARTIES shall in any event be liable for any indirect, special, incidental, consequential or other losses of any kind, in tort, contract or otherwise (including but not limited to loss of revenue, income or profits, or loss of use or data, or loss of reputation, or

loss of any economic or other opportunity of whatsoever nature or howsoever arising), arising out of or in connection with (without limitation):

- (a) any acceptance of, or reliance on the AVAILABLE INFORMATION or any part thereof including (but not limited to) mistakes or errors in code, text, or images included in any of the AVAILABLE INFORMATION)
- (b) the use, misuse, or unavailability of the RADIX LEDGER, its functionality or any performance or operation of any code or protocol or validation methodology caused by bugs or programming or logic errors or otherwise;
- (c) the offering, purchase, holding, use, sale, or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (d) any failure in a transmission or loss of any RADIX TOKEN due to communication errors, bugs, hacks, or fault in the RADIX ETHEREUM BLOCKCHAIN, RADIX LEDGER or any RADIX WALLET or any communication system, software or apparatus including but not limited to losses caused by errors in holding or transmitting ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS by the RADIX TOKEN HOLDER;
- (e) breaches of security including hacker attacks, loss or disclosure of password, loss of private key, unauthorised use or misuse of such passwords or keys;
- (f) losses attributable to any failure or error in any computer network, telecommunications system or protocol or the receipt by RADIX TOKENS (JERSEY) LIMITED or BTS of inaccurate wallet information or other information resulting in the misdirection or loss of tokens;
- (g) information contained in the AVAILABLE INFORMATION except the INFORMATION MEMORANDUM or any expectation, promise, representation, or warranty arising (or purportedly arising) therefrom (provided that, in respect of each RELEASED PARTY there will be no exception for the INFORMATION MEMORANDUM);
- (h) losses including loss of anticipated savings or other benefits resulting from changes in the pricing of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or alterations in the RADIX LEDGER (howsoever implemented);
- (i) the pricing of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any EXCHANGE in any jurisdiction or market (regulated, unregulated, primary, secondary, or otherwise);
- (j) the RADIX TOKEN HOLDERS loss of a private key to a wallet or other secure custody device holding the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;

15. MISCELLANEOUS

- 15.1 RADIX TOKENS (JERSEY) LIMITED reserves the right to refuse any requests to purchase ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or to terminate any contract of purchase at any time in its sole discretion.
- 15.2 Other CONTRIBUTORS may receive more tokens for the same CONSIDERATION amount.
- 15.3 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS may be sold under other contracts that contain different terms, for less CONSIDERATION or for different CONSIDERATION.
- 15.4 RADIX TOKENS (JERSEY) LIMITED reserves the right to change these Terms and Conditions upon notice to you which will be accepted by your continued participation in the sale, use, transfer or exchange of any RADIX TOKENS. Notice may be given by posting new terms and conditions on the SALES PLATFORM.
- 15.5 You acknowledge that RADIX TOKENS (JERSEY) LIMITED may publish a new version of the RADIX LEDGER and related software at any time and that RADIX TOKENS (JERSEY)

LIMITED is not responsible for the testing, use or adoption of the RADIX LEDGER or any variation or version therefore nor for the dissemination distribution or adoption thereof.

- 15.6 Save as provided by Clause 15.4 these Terms and Conditions may not be varied nor any rights accruing to either PARTY waived except where such variation or waiver is contained in a single physical document in writing signed by all PARTIES affected. Writing in this context shall not include e-mail but may include documents completed using electronic signatures.

16. GIVING OF NOTICE

- 16.1 A notice, or communication, given to a party under or in connection with this AGREEMENT shall be in writing and sent to the party at the postal address or both email addresses given in this AGREEMENT with copy to radix@cavendishjersey.com and acarter-silk@keystonelaw.co.uk or as otherwise notified in writing to the other party.
- 16.2 This Clause 16 sets out the delivery methods for sending a NOTICE to a party under this AGREEMENT and, for each delivery methods, the date and time when the NOTICE is deemed to have been received or given (provided that all other requirements of this clause have been satisfied):
- (a) if delivered by hand, on signature of a delivery receipt or at the time the NOTICE is left at the address;
 - (b) if sent by pre-paid first-class post at the time recorded by the delivery service;
 - (c) if sent by email, at the time of transmission (provided that no non-delivery notification is received by the sender);
- 16.3 If deemed receipt under Clause 16.2 should occur outside business hours in the place of receipt, it shall be deferred until business hours resume which means 9.00 am to 5.00 pm Monday to Friday on a day that is not a public holiday in the place of receipt.
- 16.4 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

17. TAX

- 17.1 You acknowledge, understand, and agree that you are solely responsible for compliance with all taxation obligations arising out of or related to the purchase, receipt, sale transmission holding or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and RADIX TOKENS (JERSEY) LIMITED bears no liability or responsibility with respect of any tax consequences relating thereto. You fully and effectively indemnify and hold safe RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES and each RELEASED PARTY in relation to all such liability.
- 17.2 The CONSIDERATION payable by you in respect of your acquisition of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is exclusive of amounts in respect of VAT and all forms of purchase tax.
- 17.3 In the event that the sale or disposition of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is subject to GST/ Purchase Tax or VAT (or other equivalent taxes in Jersey or elsewhere) RADIX TOKENS (JERSEY) LIMITED shall be entitled to deliver a valid VAT (or similar tax invoice) invoice to you and you will be obliged to pay additional amounts in respect of such tax as shall be payable in respect of the sale, purchase supply or exchange of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 17.4 You will be responsible for the payment of all levies, import duties, capital and all other taxes charges and fees arising out of your acquisition, possession, use or disposal of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

18. THIRD PARTY RIGHTS

- 18.1 You acknowledge that the RELEASED PARTIES shall be deemed to have adopted all RISK WARNINGS, NOTICES, DISCLAIMERS, representations, **warranties, indemnities and protections** comprised in this AGREEMENT including as further described above in this AGREEMENT and be entitled to rely on the same as described above in this AGREEMENT.
- 18.2 Save as provided by Clause 18.1 this AGREEMENT does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this AGREEMENT.

The rights of the parties to rescind or vary this AGREEMENT are not subject to the consent of any other person.

19. ASSIGNMENT

- 19.1 The benefit of this AGREEMENT shall not be assigned, charged or disposed of by you save with the express written consent of RADIX TOKENS (JERSEY) LIMITED which shall be subject to and conditional upon satisfactory compliance with Clause 19.2 below not to be unreasonably refused or delayed.
- 19.2 As a condition of providing consent pursuant to Clause 19.1 RADIX TOKENS (JERSEY) LIMITED shall be entitled to require any assignee to undertake by deed (in a form approved by RADIX TOKENS (JERSEY) LIMITED) to be bound by all of the obligations contained in this AGREEMENT; to comply with all anti-money laundering and source of funds/wealth and such other inquiries as may be required; and to acknowledge and accept disclaimers, information memorandum and risk warnings to the satisfaction of RADIX TOKENS (JERSEY) LIMITED.

20. ENTIRE AGREEMENT

- 20.1 Save that all documents referred to herein shall be deemed to be incorporated by reference, this AGREEMENT constitute the entire agreement between the PARTIES and supersede and extinguish all previous agreements, promises, assurances, warranties, representations, and understandings between the PARTIES, whether written or oral, relating to its subject matter.
- 20.2 Each PARTY agrees that it shall have no remedy in respect of any statement, representation, assurance, or warranty (whether made innocently or negligently) where such statement, representation, assurance, or warranty is not set out in this AGREEMENT.
- 20.3 Each PARTY agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in this AGREEMENT. Nothing in this Clause shall operate to limit or exclude any liability for fraud (including fraudulent misrepresentation).

21. LAW AND JURISDICTION

- 21.1 Each PARTY (which shall include successors in title) irrevocably agrees on behalf of itself and its successors in title that this AGREEMENT shall be governed and construed in accordance with laws of Jersey.
- 21.2 Any dispute or difference arising out of or in connection with:
- (a) this AGREEMENT, including the formation of this AGREEMENT; and
 - (b) without limitation, any difference or dispute arising from or relating to any claim to a right to possession, use, transfer, ownership, or any dispute arising from or related to any transaction or exchange conducted using or any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS,
- shall be resolved by arbitration in London, England before a single arbitrator in English in accordance with the rules of the London International Court of Arbitration.
- 21.3 The situs of all tangible and intangible property and/or all right of title and interest in any chose in action in or related to ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and

all legal and equitable rights, title and interest, debts and/or claims, and causes of action arising from or related to the use, transfer, possession, or control of any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall be Jersey.

- 21.4 The situs of debts, and the deemed situs of all wallets, tokens, obligations and causes of action arising out of this AGREEMENT and the use, transmission, sale, exchange, possession, use or misuse of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall be Jersey.
- 21.5 This AGREEMENT shall be deemed to have been created and performed in Jersey and all transfers and exchanges shall be deemed to occur in Jersey.
- 21.6 All transactions and exchange or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS including the operation, use and functioning of the RADIX LEDGER and performance of RADIX TRANSACTIONS shall be deemed to take place in Jersey and all transaction contracts, on ledger actions, and the actions of NODE RUNNERS including RADIX TRANSACTIONS shall be deemed to made and performed in Jersey.
- 21.7 All fees and payments due to RADIX TOKENS (JERSEY) LIMITED shall be payable and recoverable in Jersey which shall be the situs of debts due to RADIX TOKENS (JERSEY) LIMITED together with and including all payments debts and obligation due or alleged to be due from or by RADIX TOKENS (JERSEY) LIMITED.
- 21.8 No recognition or registration of any judgment, order or award made by a court other than in accordance with this AGREEMENT shall be sought to be recognised by the courts of Jersey nor any other jurisdiction nor enforceable by separate action.
- 21.9 All operation of conflict of laws is excluded.

APPENDIX 1. RESTRICTED TERRITORIES AND RESTRICTED PERSONS

PART A – RESTRICTED TERRITORIES

Afghanistan	Libya
Angola	Madagascar
Australia	Mozambique
Azerbaijan	Nicaragua
Bahamas	North Korea
Bosnia Herzegovina	Pakistan
Botswana	People's Republic of China
Burundi	Serbia
Cambodia	Somalia
Cameroon	South Korea
Canada	South Sudan
Chad	Sri Lanka
Congo	Sudan
Crimea Region of Ukraine	Syria
Cuba	Tajikistan
Democratic Republic of Congo	Trinidad and Tobago
Eritrea	Tunisia
Ethiopia	Turkmenistan
Ghana	Uganda
Guinea	USA
Guinea-Bissau	Uzbekistan
Haiti	Vanuatu
Iran	Venezuela
Iraq	Yemen
Japan	Zimbabwe
Laos	

PART B – RESTRICTED PERSONS

US PERSONS

Citizen or resident of Switzerland

Citizen or resident of the British Virgin Islands

Citizen or resident of Canada

Citizen or resident of Seychelles

SANCTIONED PERSONS

APPENDIX 2. RADIX DATA PROCESSING TERMS

1. DEFINITIONS AND INTERPRETATION

In this Schedule:

Complaint	means a complaint or request (other than a Data Subject Request) relating to either party's obligations under Data Protection Laws relevant to this Agreement and/or the processing of any of the Personal Data, including any compensation claim from a Data Subject or any notice, investigation or other action from a Data Protection Supervisory Authority relating to the foregoing (and Complainant means the Data Protection Supervisory Authority, Data Subject or other person initiating or conducting a Complaint);
Contributor	means a person who makes, acquires or contracts to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or where the context requires undertakes a Radix transaction;
Controller	has the meaning given in applicable Data Protection Laws;
Data Protection Laws	means, as applicable to either party: a. the GDPR; b. the Data Protection Act 2018; c. Jersey DP Laws; d. the Directive 2002/58/EC (e-Privacy Directive) and/or the Privacy and Electronic Communications (EC Directive) Regulations 2003; e. any other applicable law relating to the processing, privacy and/or use of Personal Data, as applicable to either party; f. any laws which implement any such laws; and g. any laws that replace, extend, re-enact, consolidate, or amend any of the foregoing;
Data Protection Supervisory	means any regulator, authority, or body responsible for administering Data Protection Laws;

Data Subject	has the meaning given in applicable Data Protection Laws from time to time;
Data Subject Request	means a request made by a Data Subject to exercise any right(s) of Data Subjects under Chapter III of the GDPR or under any similar Data Protection Laws in relation to any of the Personal Data or concerning the processing of such data;
Disclosing Party	means YOU / the CONTRIBUTOR;
GDPR	means the General Data Protection Regulation, Regulation (EU) 2016/679;
Lawful Safeguards	means such legally enforceable mechanism(s) for transfers of the Personal Data as may be permitted under Data Protection Laws from time to time;
Permitted Lawful Basis	means the following lawful bases for processing Personal Data, as set out in Article 6(1) GDPR: (a) the Data Subject has given consent to the processing of his or her Personal Data for one or more specific purposes; (b) processing is necessary for the performance of a contract to which the Data Subject is party or to take steps at the request of the Data Subject prior to entering into a contract; or (c) processing is necessary for compliance with a legal obligation to which the Controllers are subject;
Permitted Purpose	means the: (i) processing of Contributor's Personal Data in line with the requirements set out in the AMLA and the rules and regulations of VQF; (ii) collection of payments made by the Contributors, (iii) initiation of the smart-contract-system which underpins the ERC20 Radix Ethereum ledger and/or the Radix ledger; (iv) maintenance and development and promotion of the ERC20 Radix Ethereum ledger and or the Radix ledger; (v) ensuring the security of the Radix Ledger; and (vi) matters relating to and/or reasonably accidental to the above;
Permitted Recipients	means the Receiving Party's employees and contractors who need access to the Personal Data for the Permitted Purpose or a Permitted Lawful Basis;

Personal Data	has the meaning given in applicable Data Protection Laws from time to time;
Personal Data Breach	has the meaning given in the GDPR;
Processing	has the meaning given in applicable Data Protection Laws from time to time (and related expressions, including process , processed and processes shall be construed accordingly);
Receiving Party	means RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES.

2. STATUS OF THIS SCHEDULE AND THE PARTIES

RADIX TOKENS (JERSEY) LIMITED shall be a Controller of the Personal Data Radix may appoint a third party to process Personal Data on its behalf.

3. COMPLIANCE WITH DATA PROTECTION LAWS

- 3.1 The Receiving Party shall always comply with all Data Protection Laws in connection with the exercise and performance of its respective rights and obligations under this Agreement and the processing of the Personal Data.
- 3.2 This Schedule allocates certain rights and responsibilities among the parties as enforceable contractual obligations between themselves, however nothing in this Schedule is intended to limit or exclude either party's responsibilities or liabilities under Data Protection Laws.

4. OBLIGATIONS ON RECEIVING PARTY

- 4.1 The Receiving Party shall ensure that:
 - (a) it shall undertake all processing of the Personal Data only for the Permitted Purpose in accordance with this Agreement and in all respects in accordance with Data Protection Laws;
 - (b) it shall undertake processing of the Personal Data only to the extent consistent with the Permitted Lawful Basis;
 - (c) the essence of the arrangements in this Schedule are made available to each Data Subject;
 - (d) it shall not by any act or omission cause the Disclosing Party (or any other person) to be in breach of any Data Protection Laws; and
 - (e) it shall promptly (and in any event within 3 Business Days) on request provide the Disclosing Party with: (a) all copies of all notices, records and information necessary to demonstrate its compliance with this Schedule; and (b) all records referred to in paragraph 9.

5. TECHNICAL AND ORGANISATIONAL MEASURES

- 5.1 The Receiving Party shall always:
 - (a) put in place and maintain appropriate technical and organisational measures to ensure the protection of the rights of Data Subjects under Data Protection Laws and as otherwise required to meet the requirements of both parties under all Data Protection Laws; and

- (b) implement and maintain appropriate technical and organisational measures to protect the Personal Data against accidental, unauthorised, or unlawful destruction, loss, alteration, disclosure, or access.

5.2 The Receiving Party shall ensure the processing of the Personal Data shall be limited to the authorised personnel of the Receiving Party or of a Permitted Recipient that:

- (a) need to process it for the Permitted Purpose in accordance with this Agreement;
- (b) are reliable and adequately trained on compliance with all Data Protection Laws and this Schedule; and
- (c) are subject to (and comply with) a binding written contractual obligation to keep the Personal Data confidential.

6. DISCLOSURES TO PERMITTED RECIPIENTS

6.1 The Receiving Party shall be liable to the Disclosing Party for all acts and omissions of each of the Permitted Recipients as if they were the acts and omissions of the Receiving Party. Each obligation in this Schedule on the Receiving Party to do, or refrain from doing, anything shall include an obligation on the Receiving Party to ensure all Permitted Recipients do, or refrain from doing, such thing.

6.2 The Receiving Party shall not engage nor permit any staff or third parties other than the Permitted Recipients to carry out any processing of any Personal Data. The Receiving Party shall ensure:

- (a) that all processing by Permitted Recipients is conducted in a manner consistent with the Permitted Lawful Basis, the Permitted Purpose, the Receiving Party's obligations under this Agreement and the restrictions on processing imposed on the Receiving Party under this Agreement; and
- (b) without prejudice to the above, that each of the Permitted Recipients (other than the employees of a Permitted Recipient or the Receiving Party) carrying out any processing of the Personal Data is subject to a binding written agreement regulating its processing of the Personal Data which complies in all respects with the requirements of Data Protection Laws.

7. INTERNATIONAL TRANSFERS

7.1 The Receiving Party shall not transfer the Personal Data to any country outside the European Economic Area or to any international organisation (as defined in the GDPR) without the Disclosing Party's prior written consent.

7.2 If the Disclosing Party consents to the transfer of the Personal Data to any country outside the European Economic Area or to any International Organisation, the Receiving Party shall ensure that such transfer (and any onward transfer):

- (a) is pursuant to a written contract, including equivalent obligations on the recipient in respect of the Personal Data as apply to the Receiving Party under this Agreement;
- (b) is affected by way of Lawful Safeguards and, where practicable, the form of these shall be subject to the Disclosing Party's prior written approval; and
- (c) otherwise complies with all Data Protection Laws.

8. DATA SUBJECT REQUESTS, PERSONAL DATA BREACHES AND COMPLAINTS

8.1 The Receiving Party shall promptly (and in any event within 24 hours) notify the Disclosing Party if the Receiving Party suspects or becomes aware of any actual or threatened occurrence of any Personal Data Breach in respect of any Personal Data. The Receiving Party shall promptly (and in any event within 24 hours) provide all such assistance and information as the Disclosing Party requires to report any actual or

suspected Personal Data Breach to a Data Protection Supervisory Authority and to notify affected Data Subjects under Data Protection Laws.

- 8.2 The Receiving Party shall promptly (and, in any event, within 1 Business Day of receipt) inform the Disclosing Party if it receives any Complaint or Data Subject Request. When receiving and responding to a Data Subject Request or a Complaint the Receiving Party shall consult in advance with the Disclosing Party and promptly comply with the Disclosing Party's instructions (if any).
- 8.3 Subject to the remainder of this Schedule, as between the parties, responsibility for compliance with and responding to:
- (a) any Data Subject Request falls on the party which first received such Data Subject Request;
 - (b) any Complaint falls on the party which receives the Complaint from a Complainant;
 - (c) each party's respective obligations in respect of any Personal Data Breach (including notification of the Data Protection Supervisory Authority and/or Data Subject(s)) impacting or relating to any Personal Data in the possession or control of the Receiving Party (or any third party with whom it has shared such data) falls on the Receiving Party; and
 - (d) each Party's respective obligations in respect of any other obligation under Data Protection Laws (including any obligation to notify the Data Protection Supervisory Authority and/or Data Subject(s) of any other Personal Data Breach) falls on each party subject to such obligation(s).
- 8.4 Each party shall promptly co-operate with and provide reasonable assistance, information, and records to the other to assist each party with their respective compliance with Data Protection Laws and in relation to all Complaints and Data Subject Requests.
- 8.5 The Disclosing Party's obligations under paragraphs 8.3 and 8.4 shall be performed at the Receiving Party's expense, except to the extent that the circumstances giving rise to such obligation arose out of any breach by the Disclosing Party of its obligations under this Agreement.

9. RECORDS

The Receiving Party shall maintain complete, accurate and up to date written records of all of its processing of the Personal Data and as necessary to demonstrate its compliance with this Schedule (including the accountability and record keeping requirements of Data Protection Laws) and such other information as the Disclosing Party may reasonably require from time to time.

10. RETENTION

- 10.1 Except as required by applicable law the Receiving Party shall:
- (a) process each part of the Personal Data for no longer than such processing is necessary for the Permitted Purpose and compliant with this Schedule and all Data Protection Laws and in any event cease to process each part of the Personal Data on the earlier of termination or expiry of this Agreement; and
 - (b) immediately confidentially, irrecoverably, and securely destroy or dispose of all Personal Data (and all copies) in its possession or control that can no longer be processed in accordance with paragraph 10.1(a).

11. KEY CONTACT

- 11.1 The parties wish to record for reference that the representative within their organisation with overall internal responsibility for ensuring the respective party's compliance with its obligations under this Schedule is Lindsay Bracegirdle who can be contacted at

radix@cavendishjersey.com, with a copy to: tokensale@radixtokens.com (in the case of the Disclosing Party).

- 11.2 Each party may update details of their representative referred to in this paragraph 11 by written notice to the other party, including by email.

12. SURVIVAL

The provisions of this Schedule shall survive termination or expiry of this Agreement and continue for a period of 10 years or until such time as RADIX TOKENS (JERSEY) LIMITED confidentially destroys the Personal Data.